

Madagascar 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Madagascar during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; serious restrictions on freedom of expression and media freedom; and trafficking in persons, including forced labor.

The government took credible steps to identify and punish officials who committed human rights abuses, but impunity was a problem.

Section 1. Life

a. Extrajudicial Killings

There was one report the government or its agents committed multiple arbitrary or unlawful killings during the year. On January 25, security forces killed eight suspected criminals in Ikalamavony during a raid. The deceased men were suspects in the killing of two local residents several months earlier. Villagers reported soldiers shot the eight suspects at point blank

range with no warning. Local residents called for a thorough investigation, but there were no reports of government action at year's end.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities. Some members of disability rights nongovernmental organizations (NGOs), however, reported some families might have compelled girls with disabilities to have a sterilization procedure.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, but stipulated that this “may be limited by respect for the freedoms and rights of others, and by the imperative of safeguarding public order, national dignity, and state security.” The government sometimes restricted this right. The law included several provisions limiting freedom of speech and expression, including broad powers of the government to deny media licenses to political opponents, seize equipment, and impose fines. The law contained several articles limiting press and media freedom. The law gave the Ministry of Communications extensive power to suspend media licenses and seize property of media outlets if one of their journalists committed two

infractions of the law. The law allowed only state-owned radio and television stations to broadcast nationally, although this limitation was not always enforced.

In accordance with the constitution, the law restricted individuals' ability to criticize the government in public. There were reports of government intimidation and harassment of individuals for their online activities criticizing the government.

On May 16, Antananarivo gendarmerie arrested political activist Patrick Raharimanana for his criticism of the president on Facebook. He was released from custody after arraignment on May 22. On September 18, a court sentenced him to a one-year suspended prison sentence and a two million ariary (\$438) fine for illegal interception of data transmission and unauthorized publication of sensitive information. In August, he announced his intention to run for mayor in the city of Mahajanga and filed his candidacy in September.

Physical Attacks, Imprisonment, and Pressure

There were reports of journalists being harassed for criticizing the government and public services.

On September 17, an Antananarivo court sentenced Mikaelys Kamy Ndiamahazo, a journalist from Toamasina, to a five-year suspended prison sentence for undermining state security. The gendarmerie arrested him in

July following his reports regarding difficulties faced by the NGO Mercy Ships, and his criticism of the government.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Journalists practiced self-censorship due to retaliation from those targeted by their publications. Authors generally published abroad books of a political nature.

Many radio and television stations shifted to live call-in shows in recent years to distance themselves from editorial responsibility for content. Organizers of official events often invited only state-owned or ostensibly progovernment media outlets.

The government closed the private radio station RFB 103.4 in Ambatofinandrahana in May. According to private television channel Kolo TV, the closure was due to the station broadcasting campaign spots of legislative candidates not affiliated with the ruling coalition. The station was owned by former National Assembly President Christine Razanamahasoa, a ruling party opponent.

b. Worker Rights

Freedom of Association and Collective Bargaining

A new labor law promulgated in August stated public and private sector workers could establish and join labor unions of their choice without prior authorization. Civil servants and maritime workers had separate labor laws. The new law also prohibited antiunion discrimination, the setting of union affiliation or not as a hiring condition, and the dismissal or any harm to a worker for union affiliation or activities.

The new law allowed employers, under some conditions, to deduct union contributions from employees' pay. Union leaders stated this new provision could become a means for employers to control workers' union activities.

The law generally allowed for union activities and provided most workers the right to strike, including workers in export processing zones (Free Zones). Authorities prohibited strikes, however, if there was a possibility of "disruption of public order" or if the strike would endanger the life, safety, or health of the population. Workers were required first to exhaust conciliation, mediation, and compulsory arbitration remedies, which could take eight months to two and one-half years. The law also provided for a fine, imprisonment, or both for the "instigators and leaders of illegal strikes."

The law prohibited antiunion discrimination by employers. In the event of antiunion activity, unions or their members could file suit against the employer in civil court. The law did not accord civil servants and other public-sector employees legal protection against antiunion discrimination and interference. Penalties for violations were not commensurate with other laws involving denials of civil rights such as discrimination.

The law provided workers in the private sector, except seafarers, the right to bargain collectively. Public-sector employees not engaged in the administration of the state, such as teachers hired under the auspices of donor organizations or parent associations in public schools, did not have the right to bargain collectively. Procedures were subject to lengthy delays and appeals. Larger international firms, such as in the telecommunications and banking sectors, more readily exercised and respected collective bargaining rights. These rights, however, were reportedly more difficult to exercise in Free Zones and in smaller local companies. Union representatives reported workers in such companies often were reluctant to make demands due to fear of reprisal.

The government did not effectively enforce the law. Penalties were rarely applied against violators. The law required that unions operate independently of the government and political parties. Union representatives stated some employers attempted to dissuade, influence, or otherwise interfere with unions, which often prevented workers from

organizing or advocating for better working conditions. Unions reported many employers hindered their employees' ability to form or join labor unions through intimidation and threats of dismissal for professional misconduct. Trade unions complained of persistent antiunion discrimination in telecommunications, banking, textiles, the salt industry, mining, public sector, and fishing. In the public sector, according to union representatives, union members were regularly under threat of salary cuts and reassignment, and they were often refused promotion.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

In 2023, the government set the monthly minimum wage to 217,000 ariary (\$48) for the agricultural sector and to 238,000 ariary (\$53) for the nonagricultural sector. This amount exceeded the estimate of the poverty income level as defined by the World Bank.

The standard workweek was 40 hours in nonagricultural industries and 42.5 hours in the agricultural sector. The law limited workers to 20 hours of overtime per week. The law required overtime pay, generally for more than

40 hours work in one week, but the exact circumstances requiring such pay were unclear. If the hours worked exceeded the legal limits for working hours (2,200 hours per year in agriculture and 173 hours per month in other sectors), employers were legally required to pay overtime in accordance with a Labor Council decree that also denoted the required amount of overtime pay. Some employers exploited the more relaxed labor provisions in Free Zones to skirt minimum wage and overtime laws by paying employees based on production. Violations of wage, hour, and overtime laws were most common in the informal sector, mainly in agricultural and domestic labor.

Occupational Safety and Health

The government set occupational safety and health (OSH) standards for workers and workplaces. The new labor law established OSH standards that were appropriate for the main industries in the country. By law, workers, including foreign or migrant workers, had the explicit right to remove themselves from unsafe situations without jeopardizing their employment if they informed their supervisors, but employers did not always respect this right. The government did not proactively identify unsafe conditions but generally responded to worker complaints.

Wage, Hour, and OSH Enforcement

The government did not always enforce the law. Penalties were rarely

applied against violators. There were no prosecutions, and penalties were not commensurate with those for crimes like negligence.

The Ministry of Civil Service, Labor, and Social Laws was responsible for enforcing wage and hour laws. Despite an increase in the number of labor inspectors, nationwide coverage was insufficient, according to Ministry of Labor officials, and inspectors were unable to monitor appropriately the formal sector or the much larger informal sector. All labor inspections were unannounced. The labor law provided labor inspectors with the right to enter, at any time and with no prior notice, any site subject to labor inspection. Labor inspectors did not have legal authority and as a result did not issue sanctions. When they observed a labor law violation, labor inspectors reminded employers regarding the applicable legal provisions and related penalties, and they made recommendations to the court, which had the authority to assess penalties. Except in cases of serious threats to worker safety or health, the labor inspectorate submitted a report for action once an allotted time to correct the situation passed. The new labor law authorized labor inspectors to prescribe measures to fix or remove installations that infringed upon OSH, and to order immediate measures, including the closure of a company, in case of imminent harm to OSH, with the advice of other relevant departments, within 24 hours.

During the year, the labor minister conducted field visits in several regions to monitor enforcement of the minimum wage and labor law abuses such as

abusive dismissal and unpaid salary. During the visits, the minister met with regional agencies covering social protection to raise awareness on occupational safety and health, and highlighted provisions of the new labor law. During the year, the Ministry of Labor organized workshops and meetings for labor inspectors and professional federations to familiarize them with the new legal provisions.

The informal sector made up 95 percent of employment in the country, according to available data, with most persons self-employed in fishing, forestry, and agriculture at the subsistence level. Up to two million informal sector workers earned their living through artisanal and small-scale gold mining.

The government did not effectively enforce labor laws in the informal sector. Violations of wage, overtime, or occupational safety and health standards were common in the informal sector and in domestic work, where many worked long hours for less than the minimum wage. Although the law was meant to cover all types of working contracts, including the informal sector, labor inspection did not occur in the informal sector due to insufficient staffing. The General Workers' Confederation labor union alleged agricultural workers in the informal sector were not compensated for occupational injuries, in violation of the law.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court, but authorities did not always respect these provisions.

The law required arrest warrants in all cases except those involving “hot pursuit” (the apprehension of a suspect during or immediately after a crime was committed), but authorities on several occasions detained persons based on accusations and without judicial authorization. The law required authorities to charge or release criminal suspects within 48 hours of arrest, but they held some individuals for longer periods before charging or releasing them. Defendants had a right to counsel, and the law entitled those who could not afford a lawyer to have one provided by the state. Many citizens were unaware of this right, and few requested attorneys. Defendants had the right to know the charges against them, but authorities did not always respect this right. NGOs and members of the Bar Association

reported authorities frequently denied bail without justification, and some suspects were held incommunicado. There were instances when magistrates resorted to a *mandat de depot* (retaining writ) under which defendants were held in detention for the entire pretrial period. The law limited the duration of pretrial detention to eight months and regulated the use of the writ, although observers reported authorities sometimes exceeded this limit.

Security forces were accused of arbitrarily or spuriously arresting political opponents of the government, demonstrators, human rights activists, and other civilians.

On May 31, police in Tsihombe arrested a member of parliament, Masy Goulamaly, and 13 other persons accused of arson for burning the local electoral commission office two days after a legislative election. The NGO Amnesty International stated she was arrested arbitrarily after she denounced voting irregularities in her district. On June 17, a court ended her house arrest. At year's end, she continued to await trial.

Lengthy pretrial detention was a problem, and the length of pretrial detention often exceeded the maximum sentence for the alleged crime. As of October 2023, approximately 47 percent of inmates nationwide were in pretrial detention, according to the Ministry of Justice. The detention period ranged from several days to several years, according to the UN Subcommittee on Prevention of Torture. Poor recordkeeping, an outdated

judicial system, an insufficient number of magistrates, and too few courts of first instance contributed to the problem.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law provided for the inviolability of the person and prohibited such practices, but there were credible reports government officials employed them. On February 26, the government enacted a new law that prescribed harsh sentences for perpetrators of child rape, including chemical and surgical castration. Amnesty International characterized this new measure as cruel, inhuman, and degrading treatment, and inconsistent with the UN convention against torture, which was enshrined in the

country's constitution. The High Constitutional Court upheld the constitutionality of the new law on February 28 but urged the government to establish clear procedures for its application and enforcement. The government promulgated an enforcement decree in September, but at year's end had not performed a castration pursuant to the law.

Impunity was a problem in the army, police, and gendarmerie. Due to a lack of police cooperation, it was difficult to obtain official information on the outcomes of cases reported in media. A few cases, especially those reported on social media, led to investigations and legal sanctions.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

Child Marriage

The legal age for marriage without parental consent was 18, but the law provided for marriage at a younger age under certain circumstances with parental authorization or that of a legal guardian. Nevertheless, child marriage was very common, particularly in rural areas and in the south. Authorities did not enforce the law effectively.

NGOs working in the south region reported the continued practice of *moletry* (girls married as young as age 12 in exchange for oxen received as a dowry). The Ministry of Population implemented a national strategy against child marriage. Community leaders and volunteers in several regions, especially in the south, conducted awareness campaigns and programs to implement this strategy.

c. Protection to Refugees

The government generally did not interfere with representatives of the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations assisting the small number of asylum seekers and refugees in the country.

Provision of First Asylum

The law did not include provisions for granting asylum or refugee status, and the government had no system for providing protection to refugees. In 2023, the government created an Office for Refugees and Stateless Persons within the Ministry of Interior with a mandate to oversee refugee status determinations made by UNHCR through the NGO Conseil de Développement d'Andohatapenaka.

d. Acts of Antisemitism and Antisemitic Incitement

The Jewish community consisted of approximately 360 members. There

were no reports of antisemitic incidents.